

26NWCV00703 26NWCV00703

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-18

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Case Number: 26NWCV00703 Hearing Date: August 18, 2026 Dept: R

#19

STAGGS v. BIOMAT USA,
INC.

CASE

NO.: 26NWCV00703

HEARING: Tuesday, August 18, 2026, at 9:30 AM

Defendant BIOMAT USA, INC's Motion to Compel

Arbitration is GRANTED. This matter is STAYED pending completion of Arbitration.

Moving

Party to give notice.

Background

On

February 24, 2026, Plaintiff YVETTE STAGGS ("Plaintiff") filed this action against Defendants BIOMAT USA, INC. ("Defendant") and DOES 1 to 10. Plaintiff alleges that on May 13, 2025, Defendant abruptly terminated her employment based upon "based upon pretextual concerns regarding employee retention, an alleged donor complaint, and Plaintiff's purported defiance of an order pertaining to staff who claimed that they were allergic to the lab coats they were being provided." (Complaint ¶ 15.)

Plaintiff's

Complaint one cause of action under Labor Code § 1102.5 for Whistleblower Protection.

On

April 1, 2026, filed the Subject Motion to Compel Arbitration and Stay Proceedings. Defendant petitions this Court for an Order requiring Plaintiff to arbitrate this action pursuant to the Arbitration Agreement ("Agreement") executed on April 9, 2024.

On August

5, 2026, Plaintiff filed a Notice of Non-Opposition.

Existence of Arbitration

Agreement Between the Parties

The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Engalia v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.)

"The FAA...preempts any state rule discriminating on its face against arbitration... [and] also displaces any rule that covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements." (*Kindred Nursing Centers Ltd. Partnership v. Clark* (2017) 137 S.Ct. 1421, 1426.) "But a court may 'invalidate an arbitration agreement based on 'generally applicable contract defenses' without violating the FAA, so long as it does not apply a generally applicable defense 'in a fashion that disfavors arbitration.' [Citation Omitted.]" (*Garcia v. KND Development 52, LLC* (2020) 58 Cal.App.5th 736, 744.)

On April 9, 2024, Defendant sent Plaintiff her new hire paperwork.

(Ganesh Decl., ¶ 5.) The new hire paperwork included Defendant's Agreement. (Id.) Plaintiff executed the Agreement as a part of Defendant's onboarding process.

(Ganesh Decl., ¶ 7.) Plaintiff signed the Agreement on April 9, 2024, at 9:40

p.m. (Ganesh Decl., ¶ 8.)

Defendant's Agreement states:

This

Agreement requires you and the Company to arbitrate any and all claims, controversies, or disputes ("Claims") in any way related to or associated with your employment or the termination of your employment with the Company. This Agreement includes Claims the Company may have against you or you may have against the Company.

(Ganesh
Decl., Ex. A.)

Defendant's Arbitration

Agreement covers the following claims:

"The "Claims"

covered by this Agreement include, but are not limited to, claims for: wrongful termination; breach of any employment-related contract; breach of any duty owed to you by the Company or to the Company by you; disclosure of trade secrets or proprietary information; improper use of Company property or equipment; personal, physical or emotional injury; fraud, defamation, or any other tort claims; wages or other compensation due; penalties; reimbursement of expenses; discrimination or harassment, including but not limited to discrimination or harassment based on race, sex, pregnancy, religion, national origin, age, marital status, disability, medical condition, genetic characteristics, gender identity, sexual orientation, or any other protected characteristic; retaliation; and violation of any constitution, statute, ordinance or regulation, including but not limited to Title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act, the Americans With Disabilities Act, the Fair Labor Standards Act, and the Family and Medical Leave Act."

(Ganesh Decl., Ex. A.)

Defendant

met its initial burden to prove the existence of a valid Arbitration Agreement that covers the instant dispute.

Plaintiff

does not oppose the motion and thus, Defendant's Motion to Compel Arbitration is GRANTED.

CONCLUSION

Defendant's
Motion to Compel Arbitration is GRANTED.

Defendant's
Request for Judicial Notice is GRANTED. (Cal. Evid. Code § 452(h).) The
Court takes Judicial Notice of Exhibit A, JAMS Employment Arbitration Rules and
Procedures.